

[3] MOTION TO COMPEL FURTHER RESPONSES AND PRODUCTION OF DOCUMENTS TO REQUESTS FOR PRODUCTION, SET ONE AND SET TWO, AND FOR MONETARY SANCTIONS OF \$10,000.00

TENTATIVE RULING: Based on the concurrent ruling dismissing the action, Charleen Wignall-Ewing's Motion to Compel is MOOT.

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Global AG Properties USA LLC et al v. Fairwinds Estate

24CV001745

MOTION FOR TERMINATING SANCTIONS AGAINST FAIRWINDS ESTATE WINERY, LLC

TENTATIVE RULING: The motion is GRANTED. The Court orders the Clerk to STRIKE the Answer filed by Defendant Fairwinds Estate on November 18, 2024.

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Plaintiffs Global AG Properties USA, LLC, Global AG Properties, II USA, LLC, and SPP Napa Vineyards, LLC move, pursuant to Code of Civil Procedures sections 2023.010, 2023.030, subdivision (d), 2031.320, subdivision (c), and 2030.300, subdivision (d), for the imposition of terminating sanctions against Defendant Fairwinds Estate Winery, LLC (erroneously sued as Fairwinds Estate) (Fairwinds) based on Fairwind's willful violation of the Court's order compelling Defendant to provide discovery responses.

Plaintiffs commenced the action against Fairwinds by filing the operative Complaint on October 4, 2024. On November 18, 2024, Fairwinds filed an Answer by which it generally denied the allegations of the Complaint and asserted a series of affirmative defenses. On July 1, 2025, Plaintiffs filed four motions seeking to compel Fairwinds to honor its obligations under the Civil Discovery Act: (1) a motion to deem admitted the genuineness of documents and matters specified in requests for admissions; (2) a motion to compel Fairwinds to provide responses to form interrogatories; and (3) a motion to compel Fairwinds to provide responses to special interrogatories; and (4) a motion to compel Fairwinds to provide responses to requests for production of documents. Fairwinds did not file anything by way of opposition to any of the motions.

By Minute Order of August 5, 2025, the Court granted the four discovery motions.

Plaintiff filed the present motion on July 21, 2026. The Court finds from the evidence presented as follows:

1. Plaintiff adequately served Notice of the hearing on the present motion and moving papers on Fairwinds;
2. Fairwinds has not complied with any of the Court’s August 5, 2025, Minute Order, and have produced no responses to the subject discovery.

Defendants appear to concede the foregoing by failing to file anything by way of opposition to the present motion.

In addition, on February 11, 2026, the Court granted Fairwind’s former attorneys’ Motion to be Relieved as Counsel. From and after that hearing Fairwinds has not appeared in the action, and has not substituted new counsel in.

Disobeying a court order to provide discovery is a clear misuse of the discovery process. (Code Civ. Proc. § 2023.010.) To the extent authorized by the statute or statutes governing the particular form of discovery, the court may impose sanctions upon any party misusing the discovery process, including terminating sanctions consisting of an order striking the party’s pleading. (Code Civ. Proc. § 2023.030, subd. (d).) If a party fails to obey an order compelling responses to discovery, “the court may impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process...[and/or]...[a]n order rendering a judgment by default against that party.” (Code Civ. Proc. § 2023.030, subd. (d).)

It is undisputed that Fairwinds failed to obey the Court’s August 5, 2025, Minute Order. The Court further notes that Fairwinds, by all appearances, is no longer actively defending itself against the allegations in the operative Complaint. As noted above, Fairwinds failed to oppose any of the four original discovery motions and has filed no opposition to the present motion.

The sanctions imposed must be tailored to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) “The penalty should be appropriate to the dereliction and, should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

The Court finds, based on all of the foregoing, but in particular Fairwinds failure to oppose the present motion, that terminating sanctions are appropriate to Fairwinds’ failure to participate in the litigation and defend itself. Thus, Plaintiffs’ request to strike Fairwind’s Answer to the Complaint, filed November 18, 2024, is GRANTED. (See Support Memorandum at 6:13-14; see also Code Civ. Proc., § 2023.030, subd. (d)(1) [“The court may impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process”].)

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PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.